

		According to the declaration in support of the motion for entry of judgment, Defendants made payments under the terms of the settlement agreement in the sum of \$155,000, but neither the November 1, 2025 payment nor any subsequent payments have been made. (Aires Decl., ¶ 6.) Therefore, Plaintiff's counsel sent a default letter to Defendants. (Id., Ex. B.) Counsel's declaration does not specify that the default letter was sent via first class mail as opposed to only by email. Plaintiff's motion for entry of judgment is CONTINUED to July 13, 2026 at 9:00 a.m. in Department N14. Plaintiff shall file and serve evidence establishing proper written notice of default pursuant to the terms of the Settlement Agreement. Said evidence to be filed and served no later than nine (9) court days before the continued hearing date. No other briefing is allowed or will be considered. Plaintiff to give notice.
110	Schiffer v. Spencer, 2026 - 01544448	Applications for Right to Attach Orders and Orders for Issuance of Writs of Attachment - DENIED. Upon the filing of a complaint or anytime thereafter, a plaintiff may apply for a right to attach order and writ of attachment. (Code Civ. Proc., § 484.010.) Following a hearing on the application, the court shall issue a right to attach order if it finds all of the following: (1) The claim upon which the attachment is based is one upon which an attachment may be issued; (2) The plaintiff has established the probable validity of the claim upon which the attachment is based; (3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; and (4) The amount to be secured by the attachment is greater than zero. (Code Civ. Proc., § 484.090, subd. (a).)

A claim upon which an attachment may be issued is a claim (1) for money based upon a contract, express or implied, (2) of a fixed or readily ascertainable amount not less than \$500, (3) either unsecured, or secured by personal property, but not real property (including fixtures), and (4) that is a commercial claim. (Code Civ. Proc., § 483.010.)

Here, Plaintiff has not established that his claim is a commercial one. Section 483.010, subdivision (c) prohibits a prejudgment attachment against a defendant who is a natural person unless the claim arises out of “a trade, business, or profession.” As courts have observed, “[t]hose terms may be found to encompass almost any activity engaged in for profit with frequency and continuity.” (Kadison, Pfaelzer, Woodard, Quinn & Rossi v. Wilson (1987) 197 Cal.App.3d 1, 4.) Here, the allegedly breached contract was for a short-term holiday rental of Defendant Christopher Spencer’s residence. Plaintiff has not established that Spencer was in the trade, business or profession of renting out his residence, as there is no indication that this was anything other than a one-time rental of Spencer’s private residence. (See, e.g., ROA 14, Schiffer Decl. ¶¶ 2-3.)

Further, Plaintiff has not established the probable validity of his breach of contract claim. Plaintiff contends that Spencer breached the parties’ written agreement by violating the express warranty provision found in Section 1.2, which Plaintiff declares reads: “Owner warrants the property has not been used for alcohol or drug rehabilitation therapy in any form in the last 3 years.” (Schiffer Decl. ¶¶ 8-10.)

Plaintiff did not present a copy of the Agreement to the Court. However, Spencer has presented a copy of the executed agreement, which does not contain a “Section 1.2.” (Spencer Decl., ¶ 4, Exh. 1; Brown Decl. ¶ 3, Exh. 1.) There is no clause in the agreement that warranties the property had not previously been used as a rehabilitation facility. Additionally, it does not appear that Spencer Recovery Centers was a party to the agreement.

		Accordingly, the applications are DENIED. Plaintiff to give notice.
111	Solouki v. Saint-Gobain Performance Plastics Corporation, et al , 2025- 01507443	DEMURRER TO 3RD CAUSE OF ACTION - OVERRULED Defendant Mac Patel demurs to plaintiff Tony Solouki’s third cause of action for harassment on the basis of age. Defendant argues that the cause of action fails to state sufficient facts because it is based on a single incident that involved a benign comment between two coworkers. Government Code section 12940, subdivision (j), defines “unlawful employment practice” to include harassment in the workplace based on, among other statuses, age. “Under the statute ‘harassment’ in the workplace can take the form of ‘discriminatory intimidation, ridicule and insult’ that is ‘ “sufficiently severe or pervasive to alter the conditions of the victim’s employment and create an abusive working environment.” ’ [Citations.]” (Rehmani v. Superior Court (2012) 204 Cal.App.4th 945, 951.) “Whether the conduct of the alleged harassers was sufficiently severe or pervasive to create a hostile or abusive working environment depends on the totality of the circumstances. ‘ “These may include the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee’s work performance.” ’ [Citations.] ‘ “Common sense, and an appropriate sensibility to social context, will enable courts and juries to distinguish between simple teasing or roughhousing . . . and conduct [that] a reasonable person in the plaintiff’s position would find severely hostile or abusive.” ’ [Citations.]” (Rehmani, supra, 204 Cal.App.4th at pp. 951–952.) In an action for harassment, “ ‘[i]t suffices to prove that a reasonable person subjected to the discriminatory conduct would find, as the plaintiff did, that the